

TRINITY ALPS FARMS, INC. v BARRETT FARMS, LLC

24CF14779

PLAINTIFF'S MOTION FOR LEAVE TO AMEND COMPLAINT

This case involves a contract dispute involving an agreement to purchase two 40-ft freezer container units from Defendants by Plaintiff.

Now before the Court is Plaintiff's Motion to File Amended Complaint. Plaintiff seeks to substitute named entities for Does 1-3.

The Motion does not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.

However, in the interest of judicial efficiency, the Court will consider the merits of the motion, particularly as it is unopposed. (Plaintiff is admonished that any future motions must comply with Local Rule 3.3.7 or will be subject to summary denial.)

Leave to amend is liberally allowed. (*Nestle v. Santa Monica* (1972) 6 Cal.3d 920, 939.)

“If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (*Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal.App.2d 527, 539.)

Plaintiff seeks leave to amend the complaint in order to substitute Wildseed LLC, Dashiell Miller, and Michael McClaren for Does 1-3. Pursuant to Code of Civil Procedure section 474, it is proper to use fictitious names in a complaint where the real identity of the defendant is unknown. Plaintiff’s original complaint was filed in on September 30, 2024, and the statute of limitations on the underlying cause of action has not run, and no trial date has been set.

Accordingly, Plaintiff’s motion for leave to file amended complaint is **GRANTED**. The First Amended Complaint attached to the Motion shall be filed by the Court Clerk’s Office.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to prepare a formal Order complying with Rule 3.1312 in conformity with this Ruling.

**FERNANDEZ v THE RESOURCE CONNECTION OF
AMADOR AND CALAVERAS COUNTIES, INC.**

24CV47263

**PLAINTIFF'S MOTION FOR ORDER APPROVING CLASS ACTION SETTLEMENT,
APPROVING NOTICE OF SETTLEMENT,
& SETTING HEARING FOR FINAL APPROVAL**

Faviola Lizeth Fernandez ("Plaintiff") as the representative plaintiff, filed this class action lawsuit against The Resource Connection of Amador and Calaveras Counties, Inc. and The Resource Connection ("Defendants"). Plaintiff's First Amended Complaint ("FAC") alleges causes of action for wage and hour violations, including failure to pay overtime wages, wage statement violations, waiting time penalties and unfair competition. Plaintiff seeks penalties and damages under the Labor Code, Business and Professional Code, and the Private Attorney General's Act ("PAGA").

Plaintiff reports the matter has settled and moves for preliminary approval of settlement agreement ("Agreement"). (Code Civ. Proc., § 382, Cal. Rules of Court, rule 3.769.) Plaintiff has failed to file a proposed order with the motion as required by Cal Rule of Court 3.769(c). However, in the interest of judicial efficiency and because the motion is unopposed, the Court will consider the substance of the motion.

The Motion does not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3 3 7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3 3 7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The